

Multiple Choice (10 marks)

1. Which of the following propositions would be rejected by those who describe themselves as critical legal theorists?
 - (a) Law is unstable.
 - (b) Law is determinate.
 - (c) Law reflects economic power.
 - (d) Law is politics.
 - (e) Law is a social construct.
2. Why does Parfit oppose equality?
 - (a) He claims that by giving priority to the needs of the poor, we can increase equality.
 - (b) He rejects the idea of equality altogether.
 - (c) He believes that equality is not a realistic goal.
 - (d) He argues that an unequal society is inevitable.
 - (e) He suggests that societal structures inherently support inequality.
3. The _____ School of jurisprudence postulates that the law is based on what is "correct."
 - (a) Legal Pragmatism
 - (b) Legal Formalism
 - (c) Comparative
 - (d) Analytical
 - (e) Sociological
4. Why is it important to separate the concept of punishment from its justification?
 - (a) Because the concept of punishment has evolved over time.
 - (b) Because punishment can be justified in multiple ways.
 - (c) Because any definition of punishment should be value-neutral.
 - (d) Because the practice of punishment is separate from its justification.
 - (e) Because the justification of punishment varies across cultures.
5. In which of the following stages does an indigent person not have the Sixth Amendment right to counsel?
 - (a) Execution of the arrest warrant

- (b) investigative surveillance
- (c) Police interrogation prior to arrest
- (d) Post-charge lineups
- (e) Preliminary Hearing

True / False (10 marks)

Answer True or False

6. True or False: Hume's critique of natural law is based on the claim that we cannot objectively determine moral truths.
7. True or False: The protective principle of jurisdiction is based on the harm to national interests by conduct committed abroad.
8. True or False: The international recognition of human rights after World War II significantly contributed to the revival of natural law in the 20 th century.
9. True or False: Partial performance of a contract does not terminate it by operation of law.
10. True or False: A two-thirds vote in the Senate is necessary to convict and remove an impeached official from office.

Long Form Response (20 marks)

Answer each question with a clear and complete explanation.

11. In a case where a plaintiff seeks to recover life insurance proceeds, analyze the admissibility of various forms of evidence, including a diary entry from the insured's mother, in establishing the insured's correct date of birth. Discuss the legal principles that govern evidence admissibility in this context.
12. Discuss the principles of legal positivism and critically analyze why the assertion that it regards morals and law as inseparable is considered the least accurate description of this theory.

End of Paper